

23STCV05192 23STCV05192

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV05192 Hearing Date: June 26, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 26, 2026

CASE NUMBER

23STCV05192

MOTION

Motion to Seal

MOVING PARTIES

Defendants Blue

Stockings (US), Inc. and Lucasfilm Ltd. LLC

OPPOSING PARTY

None

MOTION

Defendants Blue

Stockings (US), Inc. and Lucasfilm LTD, LLC ("Defendants") move to seal certain documents Plaintiffs Full Count, Inc. and Karyn McCarthy ("Plaintiffs") lodged under seal in support of their opposition to Defendants' motion for summary judgment.

Civil court

proceedings are presumptively open to the public. (See *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555, 580, fn. 17.) Before sealing records, "a trial court must hold a hearing and expressly find that (i) there exists an overriding interest supporting closure and/or sealing; (ii) there is a substantial probability that the interest will be prejudiced absent closure and/or sealing; (iii) the proposed closure and/or sealing is narrowly tailored to serve the overriding interest; and (iv) there is no less restrictive means of achieving the overriding interest." (*NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1217-1218.)

Plaintiffs lodged

the documents at issue pursuant to California Rules of Court, rule 2.551(b)(3)(A)(iii). By so doing, Plaintiffs indicated they "do[]

not intend to request to have the records sealed." (Cal. Rules of Court, rule 2.551(b)(3)(A).) As such, Defendants move to seal the

documents. The Court is satisfied Defendants

have established the records set forth in Exhibits 9, 35, 43, 58, 60-63, and 65-67 attached to the Declaration of Robert E. Allen, which itself is contained in Plaintiff's Compendium of Evidence in Support of Plaintiffs' Opposition to the summary judgment motion, contain sensitive, non-public business information, which has competitive value to competitors. As such, it is subject to sealing. (*McGuan v. Endovascular Technologies, Inc.*

(2010) 182 Cal.App.4th 974, 988-989.) The

Court finds confidential information permeates these documents such that more limited sealing is impracticable and would render the documents unintelligible.

The Court likewise

concludes portions of Exhibits 29 and 54 which are attached to the Declaration of Robert E. Allen contain sensitive, non-public business information, which has competitive value to competitors. However, it is impractical and impossible for only portions of those Exhibits to be placed under seal; thus, the entirety of them will be sealed.

Except as set

forth in this order, the Court orders all documents in support of Plaintiffs' opposition to Defendants' motion for summary judgment to be filed publicly.

Defendants are

ordered to give notice of the Court's order and to file proof of service of same.